

24NWCV04585 24NWCV04585

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Case Number: 24NWCV04585 Hearing Date: August 28, 2026 Dept: P

MARIA DE JESUS RIVERO v. SAMI AMMARI, ET AL.

CASE NO.: 24NWCV04585

HEARING: 08/28/2026 @ 9:30 AM

#13

TENTATIVE ORDER

Plaintiff Maria Jesus Rivero's motion for leave to record replacement notice of pendency of action is GRANTED.

Moving party to give notice.

Plaintiff Maria Jesus Rivero (Plaintiff) brings a renewed motion for leave to record replacement notice of pendency of action after expungement.

Background

On November 21, 2024, Plaintiff filed this quiet title action against Defendants Sami Ammari (Defendant), Ashley Farah Ammari, Samantha Marie Ammari, Nicole Farah Ammari, Michelle Sweetheart Ammari, Razan Ammari, Peter M. Cho, Karen Miller, and Does 1 through 25. The complaint alleges the following: Defendant is a former domestic partner of Plaintiff's daughter, Amaya Rivero, who has a permanent restraining order against Defendant on behalf of herself and her family. (Complaint, ¶ 2.) The complaint alleges that

“[w]hen Ms. Amaya Rivero restrained Mr. Ammari, Mr. Ammari went about taking everything the Rivero's had.” (Complaint, ¶ 3.) This includes allegedly setting one of the Rivero family homes on fire in 2015, “plundering the Rivero's bank accounts, retirement accounts, and through fraud and forgery, gain[ing] title and control of the family's properties” in September of 2019, and “fabricat[ing] incidents and claims and obtain[ing] restraining orders on members of the Rivero family, removing both Amaya Rivero, and the Plaintiff, from their home, and taking physical control of Pablo, her husband, who then was used as a puppet.” (Complaint, ¶¶ 4-6.) Pablo Rivera is the subject of a conservatorship action (Case No. 21STPB10375). (Complaint, ¶ 8.)

The complaint alleges Defendant filed false and fraudulent court actions against various Rivero family members to take control of three Rivero properties: 2200 E Florence Avenue and 7210 Roseberry Avenue, Huntington Park, 90255-5619, County of Los Angeles and 3107 Hill Street, Huntington Park, 90255-6425, County of Los Angeles, State of California (Subject Properties). (Complaint, ¶ 12.) The complaint alleges Defendant filed forged quitclaim deeds on the Subject Properties making himself the title holder. (Complaint, ¶ 13.) The complaint alleges that Pablo lives with Defendant, and while Defendant claims he lives lavishly with Defendant Razan Ammari, a detective told Plaintiff that Pablo is not capable of making decisions. (Complaint, ¶¶ 10-14.)

The complaint asserts seven causes of action: (1) slander of title, (2) quiet title, (3) fraud, (4) conspiracy, (5) intentional misrepresentation, (6) elder abuse, and (7) trespass.

On April 2, 2026, Plaintiff filed a Notice of Lis Pendens as to 3107 Hill Street, Huntington Park, California 90255, Assessor's Parcel Number 6212-016-032 and is legally described as Lot 658, Tract 2262 as Per Map Recorded in Book 23 Page 126 of Maps, in the office of the County Recorder of said County.

On the same date, Plaintiff filed a Notice of Lis Pendens as to 2200 E Florence Avenue and 7210 Roseberry Avenue, Huntington Park, California 90255, Assessor's Parcel Number 6025- 028- 001 and is legally described as Lot 1, in Block “A” Nadeau's Pioneer Homestead Tract, as per map recorded in Book 11, Page 90 of Maps, in the office of the County Recorder of said County.

On April 21, 2026, the Court heard Defendant's (in pro per)

ex parte application to expunge the Lis Pendens. The Court denied Defendant's ex parte application in part and granted it in part. The Court specially set the instant motion to expunge lis pendens for today's date and deemed the ex parte papers the moving papers.

On May 28, 2026, the Court granted Defendant's motion to expunge lis pendens. (Order, 5/28/26).

On July 24, 2026, the instant motion first came on for hearing. The Court continued the hearing on this motion to today's date pursuant to Defendant's request for a Court Reporter filed on July 22, 2026.

On August 6, 2026, the Court denied Defendant's ex parte application to enforce the 5/28/26 Order, order Plaintiff to cause a Withdrawal of Notice of Pendency of Action to be recorded, award Defendant attorney's fees, and/or shorten time for a Motion to Enforce the 5/28/26 Order.

Legal Standard

Pursuant to Code of Civil Procedure section 405.36, "[o]nce a notice of pending action has been expunged, the claimant may not record another notice of pending action as to the affected property without leave of the court in which the action is pending."

"The statute identifies the circumstances under which a claimant...must seek leave before recording an additional lis pendens on the same property." (De Martini v. Superior Court (2024) 98 Cal.App.5th 1269, 1275, citing Code Civ. Proc., § 405.1.) "First, a claimant's initial lis pendens on a property must have been expunged. (Ibid., citing Code Civ. Proc., § 405.36.) "Second, the same claimant must desire to record a second lis pendens on the same property." (Id., at p. 1276, citing Code Civ. Proc., § 405.36.)

Discussion

Plaintiff files a renewed motion for leave to record replacement notices of pendency of action after expungement.

As a preliminary matter, Plaintiff characterizes this motion as a "renewed motion" brought in response to the Court's May 28, 2026 Order

(5/28/26 Order). The 5/28/26 Order, granting Defendant's motion to expunge lis pendens on procedural grounds, noted that Plaintiff is not precluded from moving for leave following the Order, in response to Plaintiff's request for leave in opposition to Defendant's motion. (Order, 5/28/26.)

Renewed motions are governed by Code of Civil Procedure section 1008. (See Code Civ. Proc., § 1008, subd. (e) ["No application...for the renewal of a previous motion may be considered by any judge or court unless made according to this section."].) Not only does Plaintiff not cite Code of Civil Procedure section 1008, subdivision (b) in moving for this relief, the instant motion cannot constitute a renewed motion. Plaintiff requested this relief initially as part of her opposition to Defendant's motion to expunge, not her own motion for leave. This is not renewal. "Both the original and renewed motions must request 'identical relief.'" (Doe v. Westmont College (2021) 60 Cal.App.5th 753, 761.)

The Court proceeds to treat this motion as a separate motion as it seeks separate relief. (See City and County of San Francisco v. Muller (1960) 177 Cal.App.2d 600, 603 ["The nature of a motion is determined by the nature of the relief sought, not by the label attached to it. The law is not a mere game of words."]; Sole Energy Co. v. Petrominerals Corp. (2005) 128 Cal.App.4th 187, 192, citations omitted, ["a trial court is 'free to consider the motion regardless of its label.'"].)

Plaintiff seeks leave to record replacement notices and after complying with Code of Civil Procedure sections 405.22 and 405.23. Plaintiff seeks to record the notices of the properties that were expunged on May 28, 2026.

In opposition, Defendant, in pro per, argues that Plaintiff has not demonstrated compliance or future compliance with the pre-recording service requirements of Code of Civil Procedure sections 405.22 and 405.23; Plaintiff's quiet title complaint is defective because it is not verified; the record owners were not given notice of the original lis pendens; and Plaintiff does not establish probable validity.

Defendant's first argument that Plaintiff has not or will not comply with the pre-recording service requirements of Code of Civil Procedure sections 405.22 and 405.23 is not persuasive. Plaintiff cannot take actions to record a notice of pendency of action without first obtaining leave.

(Code Civ. Proc., § 405.36.) Whether or not Plaintiff complies with Section 405.22 is measured once Plaintiff is entitled to re-record the notices and determines whether the notice is void and invalid. (Code Civ. Proc., § 405.23.) Defendant's other arguments, that Defendant was not given notice regarding the initial lis pendens or other issues related to the original notices, are not at issue here as this motion discusses leave to re-record, following a determination that expunged the initial notices.

Here, Code of Civil Procedure section 405.36 establishes two requirements for leave—both of which are met here. (See *De Martini*, supra, 98 Cal.App.5th at p. 1275.) Plaintiff seeks leave to record notices of pendency for the same properties that Plaintiff initially recorded notices, which this Court has ordered expunged. Plaintiff acknowledges her errors in her earlier recordation and purports to fix them in a subsequent recording. Arguments regarding the probable validity of the claims or whether Plaintiff actually corrects the errors she made initially are not at issue now. This ruling does not constitute a determination that the new recordings will be valid. The Court notes that since the 5/28/26 Order was based on lack of notice, Defendant's arguments, such as failure to verify the complaint or to establish probable validity, have not been ruled upon. To withstand a subsequent challenge for expungement, Plaintiff will have to establish the validity of her claims.

Accordingly, Plaintiff's motion for leave to record notice of pendency is GRANTED.